Brazoria County District Court

Cause No. 2025-CV-0026

Sarah Walker, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	May 28, 2025
Plaintiff's counsel:	Kristin Romero, Santiago & Romero Law Group

PARTIES

Plaintiff Sarah Walker is an individual residing in Texas who was the driver of a vehicle involved in the collsiion described below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, which issued the policy of automobile insurance under which Plaintiff seeks benefits and which is responsible for the claims made under that policy.

FACTS

On August 19, 2024, Plaintiff was lawfully stopped in traffic in League City when a veihcle operated by a third-party driver struck the rear of Plaintiff's vehicle with considerable force. The impact was a rear-end collision that propelled Plaintiff's vehicle forward and caused Plaintiff's head and neck to move abruptly backward and then forward. Plaintiff promptly reported the collision and the resulting injuries to Defendant and submitted the documentation required under the policy. Plaintiff sought medical evaluation and treatment for neck and upper back pain, stiffness, and headaches that began shortly after the impact and were diagnosed as whiplash injuries. Defendant has not paid the benefits owed under the policy in a timely manner and has not provided a reasonable explanation for its delay.

NEGLIGENCE

Defendant owed Plaintiff a duty to investigate the claim promptly, fairly, and in good faith, and to pay covered benefits within the time required by the Texas Insurance Code and the policy. Defendant breached that duty by failing to conduct a reasonable investigation, by delaying payment without a reasonable basis, and by failing to affirm or deny coverage within a reasonable time after receiving proof of loss. Defendant's conduct constitutes unfair settlement practices and unreasonable delay in violation of Texas law.

DAMAGES

As a direct and proximate result of the collision and Defendant's conduct, Plaintiff has suffered physical pain, mental anguish, medical expenses, lost wages, and diminished capacity to perform daily activities. Plaintiff seeks recovery of all damages allowed by Texas law, including actual damages, statutory penalties, interest, and attorney's fees. Plaintiff therefore demands judgment against Defendant in the amount of $205,000.00, together with pre-judgment and post-judgment interest, court costs, and such other relief to which Plaintiff may be justly entitled.